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HILCHOS PESACH IN THE CHASAD HOUSE

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Many shluchim find themselves challenged every year with the balancing of hosting an authentic Pesach Seder and the needs of a diverse community. This year is a leap year, causing Pesach to fall later in the year than usual. Therefore, this year in particular, we will see Jewish students running into Pesach while at university—typically uncommon on many campuses. Pesach falling a month late means that shluchim will be forced to face the reality of having to start their Seder at a time that is too late for many people in their communities. The anxieties that accompany Pesach this year are reflected by the fact that shluchim are being approached months ahead with questions by students and community members, due to the daunting thought they may have to choose between Pesach and university or Pesach and family.



This article will aim to propose creative solutions, based on a broad array of sources in

halocha, to suggest

answers to many of the questions that will arise this year. At the same time, we will address questions that may arise on any given year, taking into consideration a desire to keep Pesach to the highest standard possible, as suitable for a Chabad House, while balancing the circumstances of a diverse community. As a caveat, while this article had in mind to deal with irregular situations at a Chabad House on campus or in a community, needless to say, all the laws and minhogim of Pesach and the Seder night should be viewed as sacred, and careful consideration should be given for each individual case as it arises. When in doubt, a competent rov should be approached.



🔍 *What are the basic rules for kashering a kitchen if one does not have access to a Pesach kitchen?*

Some basic guidelines for kashering a modern kitchen: a basic kitchen consists of an oven, stove, microwave, fridge, freezer, dishwasher, surfaces, sink, pots, oven pans, and cutlery.¹



OVEN: If the oven is a self-cleaning one, one may kasher it by setting it on the full self-cleaning cycle. The racks may also be self-cleaned and used. It is preferable to line the inside of the door with aluminum foil before use. If the oven is not self-cleaning, one should thoroughly clean the oven and put it on the highest temperature for one hour with the racks inside. The

oven should still be lined or the food double-wrapped while being used.

STOVE: These come in five types: ceramic, induction, solid-plate electric, gas, and gas on glass burners. For all the above,

one may clean the surface and then turn the fire on to its highest for ten minutes. Where feasible, one should cover the surface with foil after the kashering is finished.

SURFACES AND SINKS in the kitchen should be thoroughly cleaned with a detergent or other liquid that is posul l'achilas kelev. They should then be covered with rubber mats or foil.

FRIDGES should be thoroughly cleaned and covers should



be placed over the shelves that will be used for Pesach.

MICROWAVES AND DISHWASHERS used during the year may not be kashered for Pesach.

POTS AND CUTLERY should be dipped in a pot of boiling hot water. Plastic bowls and utensils may not be kashered for Pesach.

¹ See *Compass Magazine* Vol. 13 pp. 26-40 for more details on kashering kitchens for Pesach and all year round.

QUESTIONS AND ANSWERS

FRYING PANS AND OVEN DISHES need to be kashered with a blowtorch (libun gomur).

If this is not possible, they may be placed upside down over an open flame until a piece of soft paper that is placed on the other side of the pan becomes singed. Pans and dishes coated with Teflon may not be kashered.

TABLEWARE made of earthenware, porcelain, or ceramic items cannot be kashered.

GLASSWARE used with cold food should be washed. Glassware used with hot food should not be used for Pesach.

➤ *What should one do when sharing living accommodations with a non-Jew?*

Many students live in shared accommodations, where the kitchen will continue to be used for chometz on Pesach. The basic premise is: as long as a person gets rid of his or her chometz, or puts it away and sells it to a non-Jew, he or she is not responsible for chometz that remains and is consumed in the kitchen of the shared accommodations. In order to cook during Pesach, a person may request for one



stove burner to remain unused during Pesach and kasher that burner as above and cover its immediate surrounding area. If this is not possible, kashering before each use is sufficient. Other utensils, pots and pans one chooses to use may simply be kashered before Pesach. Ideally, though, as inexpensive utensils are available, the purchase of new items should be encouraged and supported as necessary.

➤ *If one may not light a fire, what should he*

do for Bedikas Chometz and Biur Chometz?

In many residential facilities on campus or otherwise, one is not allowed to light a fire. In such a case, the search may be performed with a flashlight (*Yechaveh Daas* 1:4). Similarly, if it is not possible to perform Biur Chometz with fire, one fulfils Biur Chometz by flushing the chometz down the toilet (*Piskei Teshuvos* 445:4).

➤ *What should one do if he does*

not find time to thoroughly clean for Pesach?

In the event that a person arrives at his or her accommodation close to Pesach without time to thoroughly clean the house or apartment, a basic vacuuming of the floors is sufficient (See *Alter Rebbe's Shulchan Aruch* 442:30).

Even if one moves into accommodations that have already been cleaned and chometz will not be eaten in the house before Pesach, Bedikas Chometz should still be performed.

➤ *What may be done when nightfall is too late to begin a communal Seder?*

The basic structure of the Seder is for the Haggadah, matza and maror to be structured around the chiyuv of the Arba Kosos. The Arba Kosos must all be drunk after nightfall. The structure is: first and second kos should be interrupted by the Haggadah; the second and third kos should be interrupted by the eating of matza and maror—and the yom tov meal; and the third and fourth kos should be interrupted by the Haggadah (Hallel). If one changes this order and drinks the Arba Kosos without the above interruptions, the kosos cumulatively only constitute one single kos (*Alter Rebbe's Shulchan Aruch* 472:16).

If starting a Seder so late in the evening would prevent the hosting of a communal

Seder, causing people not to keep the basic mitzvos of Pesach, some rabbonim rule that one may begin proceedings after *plag hamincha*, starting with candle-lighting and Maariv, then Kiddush, followed by a meal without matza. This is to be followed by a shorter Seder, including Matza, Maror and Koreich after nightfall, but without Shulchan Orech. It must be pointed out, however, that this is not an ideal option, as it undermines the need to have an appetite when eating matza (*Shulchan Aruch* 471:1-2). To avoid this problem, the meal served before the first cup of the Arba Kosos should be a light meal. In any event, the first of the Arba Kosos must be drunk before Maggid but after nightfall, and a separate brocha should be recited (Rav Sherirah Gaon, *Rebbe's Haggadah Shel Pesach* p. 33).

Another possibility is to host a Seder starting after nightfall but with the following order: Kiddush, Matza, Maror, Shulchan Orech, second kos over bentching, Haggadah, third kos, Hallel, and fourth kos. This option is similar to what is suggested when a person falls asleep and wakes up close to chatzos with only enough time to eat matza

without the complete Seder (*Dogul M'rrovah, Shaarei Teshuva* 476:1).

➔ What is the minimum volume of wine for Arba Kosos?

The minimum volume for each of the Arba Kosos is a revi'is (86cc), but as far as actually drinking the wine, it is sufficient if one drinks the majority of the cup (*Alter Rebbe's Shulchan Aruch* 472:17).



➔ May one use grape juice or any other drink for Arba Kosos?

If a person is either under age, cannot drink wine for health reasons, or simply does not like wine, grape juice may be used (*Nesivim Bisdei Hashlichus* 1:10). Similarly, one may dilute wine with water as long as the volume of water that is being added is not more than the wine that is already in the cup (*Sheorim M'tzuyonim B'Halocha* 118:1). Take into consideration that wine nowadays is already diluted with water. However, in Rabbi Blumenkrantz's

Pesach guide (*The Laws of Pesach* p. 579-580) he writes that wine produced in New York State may only have up to 20% water added to it; wine produced in California may not have water added to it.

If a person doesn't have wine or grape juice, please consult with a rov to find out what can be used instead. One may not use stam yeinom (*Minchas Elazar* 3:23).

➔ If a person did not recline, does he have to repeat the mitzva?

When drinking the Arba Kosos and eating matza, one should recline (*Alter Rebbe's Shulchan Aruch* 472:14). If

one did not recline, he has still fulfilled the mitzva, as there is an opinion that states that one does not need to recline at all nowadays (*Alter Rebbe's Shulchan Aruch* 472:15).

The minhag is for women not to recline. However, one does not have to make a point to distinguish between men and women regarding this, since there is an opinion that holds that women today are chashuvos and may recline, in addition to the above-mentioned opinion that one is not obligated to recline altogether in today's





times (*Alter Rebbe's Shulchan Aruch* 472:10).

➤ **What are the most important parts of the Haggadah if time is limited for those attending a communal Seder?**

The reading of the Haggadah is a mitzvah min haTorah,

"Vehigadeta levincha"

(*Shemos* 13:8). The reading of the Haggadah between the first and second kos may be divided into two categories: chovah and minhag. There are six sections that are chovah,

including: *Avodim hoyinu*; *Mi'tchilah ovdei avodah zora* until the end of *Arami oved ovi* and the *drush* on *V'rov*; the three obligations of Pesach, matza and maror; *B'chol dor vodor*; and *L'fichach*. The rest of Maggid is minhag (*Alter Rebbe's Shulchan Aruch* 473:43).

If a person doesn't have a Haggadah, he may even read the parsha of Yetzias Mitzrayim (*Shemos* 12) from a Chumash (*Alter Rebbe's Shulchan Aruch* 473:53).

➤ **Must the Haggadah be read in Hebrew?**

The Haggadah may be read in English or any other

language (*Alter Rebbe's Shulchan Aruch* 473:42).

➤ **Must each person at the Seder recite the words of the Haggadah?**

The Haggadah need only be recited by the leader of the Seder while everyone else fulfils the mitzvah by listening (*Pirush L'Seder Leil Pesach*, Rabbeinu Eliyahu of London).

➤ **May women read the Haggadah aloud?**

If the Haggadah is read in turns by participants of the Seder, as is done at many communal Sedorim, women should be asked to read sections that are minhag rather than chovah. Alternatively, the sections that are chovah should be read together. This is due to a dispute as to whether women are obligated min haTorah to read the Haggadah or only miderabonon (*Afhein hoyu b'nes*). According to the Alter Rebbe and the Chidah, among others, women are only obligated miderabonon, as the reading of the Haggadah is a time-bound mitzvah (*Birkei Yosef*, *Orach Chaim* 474; *Alter Rebbe's Shulchan Aruch* 472:25; see *The Rebbe's Haggadah* p. 16; *Yechaveh Daas* 2:243).

➤ **How many matzos should be on the K'arah?**

The number of matzos that should be on the K'arah is in dispute. Some opinions say two matzos—one whole matza and one broken matza (lechem oni). Others say three matzos, including two whole matzos, similar to lechem mishneh on Shabbos, in addition to the broken matza (*Alter Rebbe's Shulchan Aruch* 475:3). The minhag is to have three matzos. If this is

not possible, two is sufficient.

There is a similar dispute as to whether the brocha of al achilas matza should be recited over the whole matza or the broken matza. To avoid this dispute, the brocha is to be recited while holding both matzos and one eats a kezayis from each matza—a total of two keziseim (*Alter Rebbe's Shulchan Aruch* 475:5).



➔ How much matza must one eat?

The minhag is to eat a total of four kezaisim—five kezaisim if you have a k'arah (one or two for Matza, one for Koreich, and two for Afikoman). The essential mitzvah, however, is to eat a single kezayis, which is the size of half an average-sized egg without the shell (*Alter Rebbe's Shulchan Aruch* 486:1), constituting, in weight, one dry ounce (*Luach Kolel Chabad*). This is generally the size of half a shemura matza.

Ideally, one should weigh the matza before Pesach and figure out how much matza to a kezayis as per the matzos he has. If one doesn't know the precise amount of matza, one may approximate by sight (*Maharal, Eruvin* 5b).

The matza should be eaten within a prescribed amount of time—bichdei achilas pras (*Alter Rebbe's Shulchan Aruch* 475:8). Some opinions say that one must eat the matza within four minutes (*Kaf Hachayim* 210:8), some say six minutes (*Shu"t Tzemach Tzedek, Shaar Hamiluim* § 9) and the maximum is nine minutes (*Yalkutei Chasam Sofer* 6:16). See *Sefer Haminhagim* p. 45.

According to some opinions, the kezayis matza must be eaten in a single swallow (*Terumas Hadeshen* § 139). However, one fulfils the mitzva of matza even if it is eaten casually while chatting, as long as it is eaten within 4-9

minutes, as mentioned above (*Alter Rebbe's Shulchan Aruch* 475:8).

If a person takes his time and eats matza in longer than the prescribed time, or only eats a small amount of matza, less than a kezayis, for the Seder night, he has still fulfilled a qualitative part of the mitzvah (Rabbi Aryeh Tzvi Frummer, d. Majdanek, 1943, *Eretz Tzvi* 5) and the brocha is not in vain (*Shaarei Teshuva* 475:6; *Yechaveh Daas* 1:47).

➔ If a person arrives to the Seder after chatzos, should he still eat matza?

The halocha is that the matza must be eaten before chatzos, similar to the Korban Pesach that must be eaten before chatzos (*Pesachim* 120b, *Yechaveh Daas* 4:200). If a person, however, arrives at the Seder after chatzos, he should still make sure to eat matza, as there is an opinion that one may fulfil the mitzvah min haTorah of matza the entire night. One should not, however, recite the brocha of al achilas matza (*Rambam Hilchos Chometz Umatza* 6:1; *Shaarei Teshuva*

476:1; *Nesivim Bisdei Hashlichus* 1:12).

➔ Must one keep gebroktz at a public Seder?

The custom of keeping gebroktz is what the *Shulchan Aruch* calls matzah sheruyah, based on the concern that matza may contain particles of flour which weren't fully baked and, upon coming into contact with water, may become chometz. This concern is particularly relevant when using coarse flour and thick matza (*matza oveh*), as opposed to fine flour and the matza we eat nowadays. Nevertheless, due to the prohibition on Pesach not to eat even a minute amount of chometz, one should be stringent and not allow matza to come at all into contact with water. This chumra, however, was disputed by the Chacham Tzvi and his son Rabbi Yaakov Emden, among others, due to the mitzvah of simchas yom tov (*Shaarei Teshuva* 460:10). Yet, the Alter Rebbe writes that one who is stringent in this regard should be blessed, as there is a great reason for concern of an issur d'oraisa (*Shaalos Uteshuvas Admur Hazaken, Responsa* 6).

According to all opinions, however, gebroktz is a chumrah. Therefore, when hosting a Seder



for one's community, while one should not serve gebroktz in a Chabad facility, one does not need to be overly concerned about those who are not accustomed to this chumrah.

❖ **What should be used for maror?**

Nowadays, the mitzvah of maror is midrabonon and may be fulfilled with horseradish or lettuce. If one cannot find two types of vegetables for Karpas and Maror respectively, he may use one of the above vegetables for both. The brocha of al achilas maror should be recited on the karpas and he should intend for it to also include the maror to be eaten later on (*Alter Rebbe's Shulchan Aruch* 475:22).

❖ **If a person does not have the traditional ingredients for charoses, what should he use?**

Charoses is traditionally made of apples and nuts—or any other fruit that the Jewish people are compared to in the Torah—as well as wine. The reason for this is because there is a dispute as to whether the charoses is meant to symbolize the blood or the straw and cement. The custom is, therefore, to have it symbolize both by having it made out of a chopped fruit with the addition of wine. As a bare minimum, however, one may make the charoses from a cut vegetable mixed with water

(*Alter Rebbe's Shulchan Aruch* 473:32).

❖ **May one who arrived late to the Seder and ate maror before eating matza still eat the matza?**

The order of the Seder is to eat the matza first and then the maror, based on the order in the posuk, "*Al matzos umerorim yochluhu.*" However, if a person arrives late to the Seder and eats the maror before the matza, he has still fulfilled both mitzvot (*Alter Rebbe's Shulchan Aruch* 475:22).

❖ **May a Jew invite a non-Jew to a Seder?**

One may not invite a non-Jew to attend a Pesach Seder, as one is not allowed to invite a non-Jew to attend a yom tov meal. However, one may invite a non-Jew to attend a Shabbos meal. As the first Seder night this year falls out on Friday night, one may invite a non-Jew to attend the first Seder but not the second.

There are a few additional issues with regard to hosting a non-Jew at the Seder. According to *Kaf HaChaim* (558:19), citing the Shelah, one may not share matza with a non-Jew if the matza was baked on erev Pesach after chatzos, as the matza is compared

to the Korban Pesach, which is forbidden for a non-Jew. If the matza was not baked on erev Pesach, however, one may give it to a non-Jew. According to R' Moshe Feinstein (*Igros Moshe Yoreh Deah* vol. 2, 132) there is also the issue of a non-Jew partaking in the Haggadah, as this is considered teaching Torah to a non-Jew, which is prohibited. However, he writes, in a case of a non-Jewish spouse participating in a Seder, as the Haggadah is being recited for the Jewish participants, there is no prohibition of teaching Torah to Jews while non-Jews present will also benefit (see *Yoma* 87).

From this teshuva one may conclude: Firstly, if you invite Jews to attend your Seder but non-Jews respond and come along, there is no prohibition in conducting a Seder in their presence, as long as one does not invite them personally (when Pesach falls on a weekday). This is similarly the case when a non-Jewish student, for example, accompanies a Jewish friend to the Seder. Secondly, one should avoid explicitly asking a non-Jew to read from the Haggadah. In brief, it is recommended that non-Jewish Seder guests merely observe.





➔ **What should one do with a gift that contains chometz?**

If, during Pesach, a Jewish person gives a gift containing chometz, although the present is to be rejected, the recipient must still destroy the chometz at the earliest opportunity on behalf of the benefactor (arvus). In a case where the benefactor surely has not sold his or her chometz before Pesach, the brocha of al biur chometz should be recited when destroying the chometz.

The method of destroying the chometz depends on when the gift was given: If this occurred on the first day of yom tov or on Shabbos, it should be covered until nightfall by a vessel or cloth. If the gift was given on the second day of yom tov, it should be destroyed in a manner that is permitted on yom tov (for example, by flushing it down the toilet). If given on Chol Hamoad, it is preferable to burn it (*Nesivim B'sdei Hashlichus* 1:76).

If the benefactor is a non-Jew, one is not obligated to destroy the chometz, since the recipient does not accept it and there is no arvus

for a non-Jew (*Tur Orach Chaim* 488). Nevertheless, one should throw the gift out of the house or destroy it (*Chok Ya'akov, Orach Chaim* 440:11).

According to some opinions, one must state explicitly that one is rejecting acquisition of the gift upon learning that it contains chometz (ibid, Rosh).

The obligation to get rid of a gift that contains chometz applies whether the gift is solid or liquid in form (such as bread or whisky), since most poskim maintain that "liquid derived from chometz is considered chometz" (*Chacham Tzvi* 20; *Nishal Dovid Orach Chaim* 14).

➔ **If a person missed selling his chometz with the rabbi, may he sell it to a non-Jewish friend before the time of Biur Chometz?**

The concept of selling one's chometz is based on the following consideration: The Torah says it is forbidden to have possession or utility of chometz on Pesach. This prohibition, in effect,

suspends ownership of the chometz. The Torah, however, imposes the person's ownership over the chometz if the person doesn't take steps to physically remove the chometz before Pesach from his possession (*Alter Rebbe's Shulchan Aruch* 448:8). A person must therefore

either destroy all of his chometz or transfer ownership of the chometz to a non-Jew before Pesach. There are two ways to do this: by giving it as a gift or by selling it to a non-Jew (*Terumas Hadeshen* 120, *Shulchan Aruch* 448:3). The widespread custom is to sell one's chometz to a non-Jew. The way this is done is articulated first by *Terumas Hadeshen* and then developed further by a number of poskim.

Terumas Hadeshen writes that the non-Jew gives a small amount of money to the person selling the chometz and thereby gains ownership of all the chometz that is being





sold. According to *Nodah B'Yehuda*, the remaining balance of the value of the chometz is left as a loan from the non-Jew to the Jew and full payment is effected upon the return of the chometz after Pesach (*Nodah B'Yehuda, Shivas Tziyon* 10).

The Alter Rebbe instituted that a Jewish guarantor—from whom the creditor can claim without going to the debtor first (arev kablan)—must be appointed on behalf of the non-Jew. This, ideally, should be a person who does not need to sell his own chometz. The

reason for this is so that there be no direct indebtedness—and expected full payment—from the debtor (non-Jew) to the creditor (Jew) that might nullify the sale. In addition, the Alter Rebbe instituted the need for the non-Jew to rent the space containing the chometz (agav karka), as some poskim maintain that a sale between a Jew and non-Jew with money but without physical transfer of an object (meshicha) is not sufficient (*Alter Rebbe's Shlchan Aruch* 448:8-11). The Maharil instituted that there should also be the exchange

of a cloth (kinyan suder) (*She'eiris Yehuda* 11). In the Alter Rebbe's own sale document of chometz, he adds two further methods of sale: handshake and key transfer (key transfer is not done nowadays).

Due to the importance of ensuring that a Jew does not own chometz on Pesach, as well as the complexity of this process due to the many intricacies involved, a rabbi who is competent in the details of sale of chometz should undertake this on behalf of the community.

In the event that, for whatever reason, a person was unable to sell his chometz through a rabbi and he is not familiar with all the required details, according to the Alter Rebbe in his *Shulchan Aruch* (448:8), as well as most poskim (*Magen Avraham* 448:4), bedieved, he may avoid possession of chometz on Pesach by simply selling it to a non-Jew for a small amount of money.

➔ ***If a person shares an apartment and only has a small amount of chometz, may he or she just transfer it to***

a non-Jewish housemate?

According to *Magen Avraham*, just like sale with money but without physical transfer (meshicha) is sufficient to not be in possession of chometz on Pesach, similarly, physical transfer of the chometz to a non-Jew without money is also sufficient (*Magen Avraham* 448:4).

If the chometz is of value and the person would like the chometz returned after Pesach, he may give the chometz to a non-Jew and explicitly ask that the chometz be returned after Pesach. This can be done as long as it is not stipulated as a condition (matonah al menas lehachazir (*Magen Avraham* 448:5).

In case all the above is not possible and one has people in one's community who will almost definitely not remember to sell or give way their chometz, according to some opinions (*Maadanei Shmuel* 114:25), one may sell the chometz of one's community even without their knowledge, similar to eruv tavshilin, based on zochin l'odom sh'lo befonov (*Seder Madanei Shmuel* 114:25; *Mechiras Chometz Left Takonas Raboseinu* by Rabbi Sholom Dovber Levin). 🇺🇸

